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Council Initiates Process to Extend Outdoor Dining Program

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The City of San Clemente's outdoor dining program is anticipated to continue until July 2026, after a unanimous vote from the City Council on Tuesday night, Nov. 7.

The council voted to initiate a zoning amendment to the city's municipal code that would extend the program until July 1, 2026, a process that involves the Planning Commission reviewing an amendment at a public hearing before being referred to the council for a final decision.

Gov. Gavin Newsom's signing of Assembly Bill 1217 on Oct. 8 prompted the council to act; otherwise, the Temporary Parklet Dining Ordinance would have expired on Dec. 31.

AB 1217 extends multiple existing provisions, including one concerning the "regulatory flexibility" that enables outdoor food and alcohol service, according to Assemblymember Jesse Gabriel, the measure's primary sponsor.

Before the vote, Councilmember Victor Cabral referenced several recent discussions he and Councilmember Rick Loeffler had with downtown businesses, during which all the businesses spoke of the parklets' importance and existence as a revenue generator.

"We've got to figure out a way to work with them to make San Clemente a city where they can do business, make money and service the community," he said.

The original zoning amendment approved in April 2022 was a measure to extend the outdoor dining program, which was initiated to combat the pandemic's impact on restaurants, and established design standards and a monthly licensing fee for participating businesses in Downtown San Clemente.

The agenda report stated that the council must pass another zoning amendment to continue the current program past its "sunset date." The city would also continue to collect between $5,000 and $10,000 per month from participating businesses.

Economic Development Director Jonathan Lightfoot also mentioned on Tuesday that parklets will be removed starting in January 2024 amid a capital improvements project involving work to upgrade the city's electrical system along Avenida Del Mar.

"Down the line, if the council at the future public hearing does vote to extend (the program), those parklets are still going to be impacted by that work that's coming," he said.

The project is expected to take a maximum of nine months to complete, Lightfoot added, saying that businesses along Del Mar should be impacted for "weeks, at the most" as construction moves incrementally down the street.

He also said the city won't collect fees from businesses during the times parklets are moved.

When Cabral raised the issue of whether the city would assist businesses that need to disassemble, remove and store parklets elsewhere, Mayor Chris Duncan said the program was approved with the understanding that the CIP project was upcoming.

"I want to help the businesses, too, but full disclosure: they always knew this was going to happen, they knew (the parklets needed to be taken down), and hopefully, they made preparations for that," Duncan continued. "I don't

know what else we can do."

Mayor Pro Tem Steve Knoblock suggested the city more firmly enforce aesthetic standards for outdoor dining decks, as he favored a classier, "uniform" look similar to outdoor dining in Encinitas over what he called a "hodgepodge" of different-looking decks on Del Mar.

Although the existing Temporary Parklet Dining Ordinance includes standards for matters such as location and materials, both Knoblock and Loeffler attested the parklets have become more "customized" over time.

Lightfoot said he could create a list of recommendations concerning specific issues for the Planning Commission to address before the council hears the issue again.

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